



Proposal

July 16, 2024

Project: High School Chillers, Pumps, and VFD Replacements.

To: Brecksville Broadview Heights City School District

This letter ("Agreement") outlines the scope of work and the terms and conditions associated with the High School Chiller, Pump, and VFD Replacement Project ("Project") that Ameresco is proposing to Brecksville Broadview Heights City Schools ("Client"). The objective of this Agreement is to provide the Client with a turn-key solution to provide new chillers, related pumps, VFD's, piping, refrigerant, etc. to replace the existing end of life units at the North end of the High School. **The overall project cost to implement this work is \$907,592.**

Scope of Work

Existing Conditions:

BBH High School is cooled with (2) Trane air cooled chillers: 300 ton and 350-ton. Both the Chillers are 25+ years old and are at their end of ASHRAE recommended useful life. The chillers utilize R-22 refrigerant which is no longer produced due to environmental concerns.

Proposed Scope of Work:

Ameresco proposes replacing both the existing Chillers with (2) 300 Ton Air Cooled Variable Speed Screw Chillers. The proposed new chillers will be installed on the existing chiller pads.

The other scope of work includes (2) 6" 2way chiller isolation valves, (2) 5" 2way isolation valves, (2) 7.5 HP primary CW pumps with VFDs, (2) 125HP secondary CW pumps w/ VFDs and (1) 220 Gal CW exp tank.

Inclusions: Drain, Disconnect and disposal of exiting chillers. Reconnect all electric and plumbing, integration into existing controls system. Factory startup and verification of proper operation (required for warranty). Permits and inspection as required. Remove, store, and replace the existing glycol, adding additional glycol as needed to achieve a 30% solution by assuming a glycol feeder exists. Pricing assumes normal working hours and general access. 1-year unit parts, labor, refrigerant warranty. 2nd-5th year compressor parts warranty

Exclusions: Water balance, asbestos abatement (if needed). Upgrade of existing JACE building automation/controls (if needed). Premium time or overtime. Mechanical or electrical repairs outside of the scope of proposed work. Replacement of landscaping altered during removal and installation. Taxes.

Cost Breakdown

Progress Payments:

The maximum fee for Ameresco to provide the services listed above is **\$907,592**. Ameresco shall submit progress payments to the Client. Client shall make payment within thirty (30) days after Client's receipt and approval of each submitted and accurate progress payment invoice.

Sincerely,
Will Lytwyn
Regional Director, Smart Building Solutions Group

**** This price is only valid for 30 days from the date of the proposal. ****

Intent to Proceed

Brecksville Broadview Heights City School District

Ameresco, Inc.

Name: _____

Name: _____

Date: _____

Date: _____

Signature: _____

Signature: _____

Article 1—These Terms and Conditions are incorporated into the Agreement between the Parties (collectively, the “Agreement”). CLIENT engages AMERESCO and AMERESCO accepts the engagement to perform the scope of work described in this Agreement and any attachments (the “Work”). AMERESCO will provide the design, procurement, construction supervision, inspection, labor, materials, tools, equipment, and other items necessary and reasonably inferable for the completion of the Work, and will substantially complete the Work by the date set forth in the Agreement (the “Contract Time”).

Article 2 - AMERESCO's Responsibilities

2.1 AMERESCO will procure drawings, specifications and other documents necessary to perform the Work and will pay for and secure any and all necessary permits, fees, licenses and inspections by government agencies necessary for the Work. CLIENT will assist in securing such permits, fees, licenses and inspections. All reports and drawings prepared for and deliverable to CLIENT under this Agreement (“Deliverables”) become CLIENT's property upon full payment to AMERESCO. AMERESCO may retain file copies of such Deliverables. All other reports, notes, calculations, data, drawings, estimates, specifications, manuals, other documents and all computer programs, codes and computerized materials prepared by or for AMERESCO (“Instruments”) remain AMERESCO's property. Upon execution of this Agreement, AMERESCO grants CLIENT a non-exclusive license to retain, use and make copies, of AMERESCO's Instruments in connection with the CLIENT's use and occupancy of the Project, provided that the CLIENT has paid to AMERESCO all amounts due and payable as of the date of AMERESCO's cessation of performance.

2.2 AMERESCO is not responsible for the maintenance, repair or replacement of non-maintainable, non-replaceable, or obsolete parts of equipment already existing at the Facilities. Unless expressly agreed in writing, AMERESCO is not responsible for the removal or reinstallation of replacement valves, dampers, or waterflow and tamper switches with respect to pipes and ductwork, including vent or drain system. AMERESCO assumes no responsibility for any service performed on any equipment other than by AMERESCO or its agents.

2.3 At its option, AMERESCO may subcontract some or all of the Work or Services, but no contractual relationship will exist between CLIENT and any subcontractor. AMERESCO is responsible for the management of its subcontractors in their performance of their work.

Article 3 - CLIENT's Responsibilities

3.1 CLIENT, without cost to AMERESCO, shall (a) provide or arrange for, upon reasonable notice, access and make all reasonable provisions for AMERESCO to enter any site where Work is to be performed (the “Site”); (b) permit AMERESCO to control and operate all building controls, systems, apparatus, equipment and machinery necessary to perform the Work; (c) furnish AMERESCO with blueprints, surveys, legal descriptions, waste management plans and all other information pertinent to the Work and any Site where the Work is to be performed that are known to be existing and available to CLIENT; (d) cooperate with AMERESCO in obtaining permits and consents from government authorities and others as may be required by AMERESCO for performance of the Work so as not to affect the timelines set forth in this Agreement; (e) notify AMERESCO promptly of all known or suspected hazardous materials, asbestos or mold at the Site and any other conditions requiring special care; (f) provide AMERESCO with legally required materials and information (including but not limited to Material Safety Data Sheets) related to all hazardous materials located at any Site where the Work is to be performed; (g) furnish AMERESCO with any contingency plans, safety programs and other policies, plans or programs related to any Site where the Work is to be performed; (h) operate, service and maintain all equipment according to the manufacturer's recommendations including those set forth in the manufacturer's operating manuals or instructions, as well as all requirements of applicable law or of authorities having jurisdiction; and (i) promptly notify AMERESCO of all unusual or materially changed operating conditions, hours of usage, system malfunctions, installed equipment or building alterations that may affect the equipment or energy usage or any Services.

3.2 Client acknowledges that the technical and pricing information contained in this Agreement is confidential and proprietary to AMERESCO and agrees not to disclose it or otherwise make it available to others without AMERESCO's express written consent. This imposes no obligation upon CLIENT with respect to confidential information that: (a) the CLIENT can demonstrate was already in the CLIENT's actual possession or knowledge and which CLIENT lawfully acquired other than from PLUG SMART/AMERESCO was; (b) is or becomes publicly available through no fault, action, omission or intervention of CLIENT; (c) is received by CLIENT from a third party without a duty of confidentiality (express or implied) owed to PLUG SMART/AMERESCO; (d) is independently developed by CLIENT without a breach of this Agreement; (e) is disclosed by CLIENT with the PLUG SMART/AMERESCO's prior written approval; or (f) is required to be disclosed by operation of law, court order or other governmental demand.

Article 4 - Changes and Delays

4.1 As the Work is performed, conditions may change or circumstances outside AMERESCO's reasonable control (including changes of law) may develop which would require AMERESCO to expend additional costs, effort or time to complete the Work, in which case AMERESCO will submit a request for an equitable adjustment in the Contract Price, the Contract Time, or in both.

4.2 If conditions are encountered at the jobsite that are (1) subsurface or otherwise concealed physical conditions which differ materially from those indicated in the Agreement, or (2) unknown physical conditions of an unusual nature, which differ materially from those ordinarily found to exist and generally recognized as inherent in construction activities of the character provided for in this Agreement, then written notice by AMERESCO shall be given to CLIENT promptly before conditions are disturbed and in no event later than 21 days after first observance of the conditions. If requested, an equitable adjustment to Contract Price and Contract Time shall be made by a change order. If agreement cannot be reached by the Parties within 10 days, AMERESCO may assert a claim for an equitable adjustment in the Contract Price or Contract Time or both. Failure to properly submit written notice of such conditions within the time required represents an irrevocable waiver of AMERESCO's right to assert a claim for an increase in the Contract Price or Contract Time.

4.3 AMERESCO shall not be responsible for loss, delay, injury, damage or failure of performance that may be caused by circumstances beyond its control, including but not restricted to acts or omissions by Client or its employees, agents or contractors, Acts of God, war, civil commotion, acts or omissions of government authorities, fire, theft, corrosion, flood, water damage, lightning, freeze-ups, strikes, lockouts, differences with workmen, riots, explosions, quarantine restrictions, delays in transportation, or shortage of vehicles, fuel, labor or materials. In the event of such delay or failure, the time for performance shall be extended by a period equal to the time lost plus a reasonable recovery period and the compensation shall be equitably adjusted for additional costs AMERESCO incurs due to such delay.

Article 5 – Compensation

5.1 CLIENT shall pay AMERESCO the Contract Price identified on the Agreement within 30 days of CLIENT's receipt of AMERESCO's invoice. Payments shall be made on account of materials and equipment delivered and suitably stored at the Site for subsequent incorporation in the Work. Off-Site storage of materials is permitted. Upon final completion of the Work, AMERESCO shall submit to CLIENT a final invoice of all remaining sums. Payment of the final payment shall be made within 30 days after CLIENT's receipt of the final Application for Payment.

5.2 Except to the extent expressly agreed in writing, AMERESCO's fees do not include any taxes, excises, fees, duties or other government charges related to the Work, and Client shall pay such amounts or reimburse AMERESCO for any amounts it pays. If Client claims a tax exemption or direct payment permit, it

shall provide AMERESCO with a valid exemption certificate or permit.

Article 6 – Insurance

6.1 CLIENT and AMERESCO will maintain, at its own expense, property insurance written on a builder's risk "all-risk" or equivalent policy form in the amount of the initial Contract Price, plus the value of subsequent modifications and cost of materials supplied or installed by others, on a replacement cost basis without optional deductibles. Such property insurance shall be maintained until final payment has been made to AMERESCO.

6.2 Risk of loss of materials and Equipment furnished by AMERESCO shall pass to Client upon delivery to Client's premises, and Client shall be responsible for protecting and insuring them against theft and damage.

6.3 ANYTHING HEREIN NOTWITHSTANDING, IN NO EVENT SHALL AMERESCO BE RESPONSIBLE UNDER THIS AGREEMENT FOR INCIDENTAL, CONSEQUENTIAL, PUNITIVE, EXEMPLARY OR SPECIAL DAMAGES, INCLUDING WITHOUT LIMITATION LOST PROFITS, LOSS OF USE AND/OR LOST BUSINESS OPPORTUNITIES, WHETHER ARISING IN WARRANTY, LATE OR NON-DELIVERY OF ANY WORK, TORT, CONTRACT OR STRICT LIABILITY, AND REGARDLESS OF WHETHER CLIENT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES AND, IN ANY EVENT, AMERESCO'S AGGREGATE LIABILITY FOR ANY AND ALL CLAIMS, LOSSES OR EXPENSES (INCLUDING ATTORNEYS FEES) ARISING OUT OF THIS AGREEMENT, OR OUT OF ANY WORK FURNISHED UNDER THIS AGREEMENT, WHETHER BASED IN CONTRACT, NEGLIGENCE, STRICT LIABILITY, AGENCY, WARRANTY, TRESPASS, INDEMNITY OR ANY OTHER THEORY OF LIABILITY, SHALL BE LIMITED TO THE LESSER OF \$1,000,000 OR THE TOTAL COMPENSATION RECEIVED BY AMERESCO FROM CLIENT UNDER THIS AGREEMENT. AMERESCO reserves the right to control the defense and settlement of any claim for which AMERESCO has an obligation to indemnify hereunder. The parties acknowledge that the price which AMERESCO has agreed to perform its Work and obligations under this Agreement is calculated based upon the foregoing limitations of liability, and that AMERESCO has expressly relied on, and would not have entered into this Agreement but for such limitations of liability.

Article 7 - Hazardous Material Provisions

7.1 The Work does not include directly or indirectly performing or arranging for the detection, monitoring, handling, storage, removal, transportation, disposal or treatment of Oil or Hazardous Materials. Except as disclosed pursuant to Section 7.3, Client represents that there is no asbestos or any other hazardous or toxic materials, as defined in the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended, the regulations promulgated thereunder, and other applicable federal, state or local law ("Hazardous Materials"), present at Client's locations where Work is performed. AMERESCO will notify Client immediately if it discovers or suspects the presence of any Hazardous Material. All Work has been priced and agreed to by AMERESCO in reliance on Client's representations as set forth in this Section 7.1. The presence of Hazardous Materials constitutes a change in the Proposed Solution equivalent to a change order whose terms must be agreed to by AMERESCO before its obligations hereunder will continue.

7.2 Client shall be solely responsible for testing, abating, encapsulating, removing, remediating or neutralizing such Hazardous Materials, and for the costs thereof. Even if an appropriate change order has been entered into pursuant to Section 7.1 above, AMERESCO will continue to have the right to stop the Work until the job site is free from Hazardous Materials. In such event, AMERESCO will receive an equitable extension of time to complete its Work, and compensation for delays caused by Hazardous Materials remediation. In no event shall AMERESCO be required or construed to take title, ownership or responsibility for such Oil or Hazardous Materials. Client shall sign any required waste manifests in conformance with all government regulations, listing Client as the generator of the waste.

7.3 Client warrants that, prior to the execution of the Agreement, it has notified AMERESCO in writing of any and all Hazardous Materials present, potentially present or likely to become present at Client's locations and has provided a copy of any jobsite safety policies, including but not limited to lock-out and tag procedures, laboratory procedures, chemical hygiene plan, material safety

Article 8 – Warranty

8.1 CLIENT shall have good and clear title to all equipment and material furnished to CLIENT pursuant to this Agreement (except licensed software, which shall be governed exclusively by the terms and conditions of the Software License Agreement), free and clear of liens and encumbrances.

8.2 In addition to the warranty and guarantee set forth in the Installation Contract, AMERESCO shall assign to CLIENT any and all manufacturers and/or installer's warranties for equipment or material provided as part of the Work, to the extent that such third-party warranties are assignable. Prior to installing material and/or equipment which is subject to a manufacturer's warranty, AMERESCO shall provide a copy of the warranty to the CLIENT

8.3 The warranties and guarantees set forth in the Installation Contract will be void as to, and shall not apply to, any Equipment (i) improperly repaired, altered or installed except when such improper repair, alteration or installation is performed by AMERESCO or its authorized representatives and Subcontractor; (ii) subjected to unreasonable or improper use or storage, used beyond rated conditions, operated other than per AMERESCO's or the manufacturer's instructions, or otherwise subjected to improper maintenance, negligence or accident; (iii) damaged because of any use of the Equipment after CLIENT has, or should have, knowledge of any defect in the Equipment. AMERESCO assigns to CLIENT, without recourse, any and all assignable warranties available from any manufacturer, supplier, or Subcontractor of such Equipment.

8.4 Any claim under the warranty granted in the Installation Contract must be made per the terms of the Installation Contract. Such warranty only extends to CLIENT and not to any subsequent owner of the Equipment.

8.5 It is understood and agreed that the warranties and guarantees as provided in the Installation Contract are the sole warranties and guarantees provided by AMERESCO and are given in lieu of any other express or implied warranties, including any and all warranties that are not provided by AMERESCO in this Agreement.

Article 9 - Miscellaneous Provisions

9.1 Notices between the parties shall be in writing and shall be sent by overnight carrier or acknowledged email to the other party.

9.2 This Agreement shall be governed by the laws of the State of Ohio, and the parties agree to the exclusive jurisdiction of any state or federal court located in Cuyahoga County, Ohio.

9.3 A party's waiver of any breach of this Agreement does not waive any subsequent breach. All waivers must be in writing signed by the party to be bound.

9.4 This Agreement constitutes the complete agreement between the parties and supersedes all prior and contemporaneous negotiations, representations, agreements, awards, or proposals, either written or oral, relative to the same. Only a written instrument signed by both parties may modify this Agreement.

Article 10 – Termination. If CLIENT fails to make payments as they become due, or otherwise defaults or breaches its obligations under this Agreement, AMERESCO may give written notice to CLIENT of AMERESCO's intention to suspend or terminate this Agreement. If, within 15 days following receipt of such notice, CLIENT fails to make payments then due, or otherwise fails to cure or perform its obligations, AMERESCO may, by written notice to CLIENT, immediately terminate this Agreement and recover from CLIENT payment for Work executed.